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County: los-angeles

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Case Number: 25VECV04460 Hearing Date: August 12, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

FARZAD RADPARVAR,

Plaintiff,

vs.

SAEED RADPARVAR AND DOES 1-100.

Defendant.

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CASE NO.: 25VECV04460

ORDER SUSTAINING IN PART DEFENDANT’S DEMURRER WITHOUT LEAVE TO AMEND

ORDER DENYING DEFENDANT’S MOTION TO STRIKE

SAEED RADPARVAR,

Cross-Complainant,

vs.

FARZAD RADPARVAR.

Cross-Defendant.

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I. BACKGROUND

Plaintiff Farzad Radparvar (“Plaintiff”) alleges he and Defendant Saeed Radparvar (“Defendant”) orally agreed for Farzad to buy shares in Gorman Oil Corporation (“GOC”) in the sum of $100,000.00 in Defendant’s name in exchange for Farzad to receive 18.7% of all distributions from GOC (the “GOC Agreement”).

Defendant demurrers and moves to strike portions of the First Amended Complaint (“FAC”).

II. PROCEDURAL HISTORY

On August 8, 2025, Plaintiff filed a Complaint alleging (1) Accounting and (2) Declaratory Relief.

On November 26, 2025, Defendant filed an Answer and Cross-Complaint.

On February 25, 2026, Plaintiff filed an Answer to the Cross-Complaint and a Cross-Complaint.

On May 19, 2026, Plaintiff filed a First Amended Cross-Complaint.

On June 11, 2026, Plaintiff filed a FAC alleging (1) Breach of Oral Contract; (2) Declaratory Relief; (3) Promissory Estoppel; and (4) Accounting. Plaintiff also dismissed his Cross-Complaint.

On July 15, 2026, Defendant filed the instant Demurrer with Motion to Strike.

On July 23, 2026, Plaintiff filed a Notice of Errata correcting a typographical error contained in the FAC.

On July 30, 2026, Plaintiff filed his Oppositions.

On August 5, 2026, Defendant filed his Replies.

III. MEET AND CONFER

Before filing a demurrer or motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (See Code Civ. Proc. § 430.41(a), §435.5(a).) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (See Code Civ. Proc. § 430.41(a)(3).)

Defendant's counsel attests he scheduled a meet and confer with Plaintiff's counsel, but after Plaintiff's counsel cancelled the meeting, Defendant's counsel reasoned that because previous meet and confer efforts concerning substantially similar issues were fruitless, further meet and confer concerning this pleading would also be fruitless. (See Declaration of Fahim Farivar filed July 15, 2026, ¶ 5.) Thus, Defendant's counsel did not pursue and further meet and confer efforts. (See id.)

The Court finds Defendant's counsel did not comply with his statutory meet and confer obligation prior to filing the instant Demurrer with Motion to Strike. Counsel is expected to meet and confer each time prior to filing a demurrer or motion to strike. Failure to do so in the future runs the risk of either sanctions or the Court declining to address the merits of the issues before it.

IV. DEMURRER

A. Legal Standard

A demurrer may be brought if insufficient facts are stated to support the cause of action asserted. (See Code Civ. Proc. § 430.10(e).)[1] "A demurrer tests the sufficiency of a complaint as a matter of law."¿ (Durell v. Sharp Healthcare¿(2010) 183 Cal.App.4th 1350, 1358.) Allegations are to be liberally construed. (See Code Civ. Proc. § 452.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (See Blank v. Kirwan¿(1985) 39 Cal.3d 311, 318.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (See SKF Farms v. Superior Court¿(1984) 153 Cal.App.3d 902, 905.) A demurrer can only be sustained when it disposes of an entire cause of action.¿(See Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119; Kong v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046.)

A demurrer may be brought if the pleading is uncertain, ambiguous, or unintelligible. (See Code Civ. Proc. § 430.10(f).) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading but is directed only at uncertainty existing in the allegations already made. (See People v. Taliaferro (1957) 149 Cal.App.2d 822, 825.) Where complaint is sufficient to state a cause of action and to apprise defendant of issues he is to meet, it is not properly subject to a special demurrer for uncertainty. (See id.; see also Gressley v. Williams (1961) 193 Cal.App.2d 636, 643 ["[a] special demurrer [for uncertainty] should be overruled where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet"].)

¿Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court a pleading can be amended successfully. (See id.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

B. Objections

The Court will disregard the cited portions in Plaintiff's Opposition as they are immaterial to this ruling. (See Def.'s Objections filed August 5, 2026.)

C. Judicial Notice

The Court grants Defendant's request for judicial notice pursuant to Evidence Code § 452(d) and (h). Judicial notice of court records and files is limited to matters that are indisputably true. This generally means judicial notice is limited to the orders and judgments in the other court file, as distinguished from the contents of documents filed. (See Fremont Indemnity Co. v. Fremont Gen. Corp. (2007) 148 CA4th 97, 113.)

D. Analysis

1. Sham Pleading

Under the sham pleading doctrine, plaintiffs are precluded from amending the complaint to omit harmful allegations, without explanation, from prior complaints to avoid attacks raised in demurrers or motions for summary judgment. (See Deveny v. Entropin, Inc. (2006) 139 Cal.App.4th 408, 425.) In addition, if a party files an amended complaint and attempts to avoid the defects of the prior pleading by either omitting facts or adding facts inconsistent with those in the prior pleadings, the court may take judicial notice of prior pleadings and may disregard inconsistent allegations. (See Colapinto v. County of Riverside (1991) 230 Cal.App.3d 147, 151.) The sham pleading doctrine is not intended to prevent honest complainants from correcting erroneous allegations or to prevent correction of ambiguous facts. (See Deveny, 139 Cal.App.4th at 426.) Thus, the party who made the inconsistent pleading must be allowed to explain the changes. (See id.)

The parties dispute whether the FAC is a sham pleading. Upon review of the parties' arguments and disputed allegations, the Court finds the FAC is not a sham pleading, as there are no inconsistent allegations. Moreover, Plaintiff explains the changes to the FAC. (See Opp. at 10:11-11:13.) The Court further addresses this dispute below with respect to the Motion to Strike.

2. Breach of Contract

To state a cause of action for breach of contract, Plaintiff must be able to establish "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

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a. Statute of Frauds and Breach element

"An agreement that by its terms is not to be performed within a year from the making thereof" is "invalid, unless they, or some note or memorandum thereof, are in writing and subscribed by the party to be charged or by the party's agent[.]" (Civil Code § 1624(a)(1).) "It is a well-established rule in California that an oral contract is invalid under subdivision 1 only where by its very terms it cannot be performed within a year from the date it is made… Accordingly, if by its terms performance of a contract is possible within one year, the contract does not fall within the statute even though it is probable that it will extend beyond one year." (Plumlee v. Poag (1984) 150 Cal.App.3d 541, 548-49 [emphasis in original].)

"The statute requires either a written contract or "some note or memorandum" subscribed by the party to be charged. Since the statute of frauds primarily serves to prove that a contract exists, the writing need only mention certain essential or meaningful terms…However, where assertion of the statute of frauds would cause unconscionable injury, part performance allows specific enforcement of a contract that lacks the requisite writing. …[T]o constitute part performance, the relevant acts either must unequivocally refer[] to the contract, or clearly relate to its terms. Such conduct satisfies the evidentiary function of the statute of frauds by confirming that a bargain was in fact reached." (In re Marriage of Benson (2005) 36 Cal.4th 1096, 1108-1109 [internal citations and quotations omitted].)

Defendant argues the GOC Agreement, which the FAC alleges is perpetual and recurring cannot, by its terms, be performed within one year and is thus unenforceable absent a signed writing. (See Dem. at 3:28-4:7.) Further, Defendant argues the FAC pleads at paragraph 8 and exhibit D that the 2024 draft agreement was never signed, and thus the statute is not satisfied. (See id., at 4:10-19.) Second, Defendant cites Secrest v. Security National Mortgage Loan Trust 2002-2 (2008) 167 Cal.App.4th 544, 555–556, for the proposition that the payment of money is not sufficient part performance, and the part-performance doctrine is an equitable principle that does not remove an oral contract from the statute in an action at law for damages. (See Dem. at 4:24-27.) Defendant also argues Plaintiff does not allege the payments Plaintiff received unequivocally refer to the contract or its terms. (See id., at 5:1-8.) Finally, Defendant argues Plaintiff cannot rely on a theory of full performance to remove the oral GOC Agreement from the statute because the FAC pleads Plaintiff breached the agreement. (See id., at 5:8-20, citing Zakk v. Diesel (2019) 33 Cal.App.5th 431, 454 [finding that plaintiff's "allegation that he fully performed all of his obligations under the alleged oral or implied-in-fact contract was sufficient to take the contract out of the statute of frauds."].)

In opposition, Plaintiff cites Foley v. Interactive Data Corporation (1988) 47 Cal.3d 654, 673, for the proposition that if a contract could occur within one year of its making, then the contract does not fall within the statute of frauds. (See Opp. at 3:10-16.) Plaintiff contends, as pled, the GOC Agreement could have been completed within one year. (See id., at 3:24-25.) Next, Plaintiff argues he filed a Notice of Errata concerning the typographical error at paragraph 12, where the FAC erroneously states "Plaintiff" instead of "Defendant". (See Opp. at 4:16-19.)

In reply, Defendant reasserts the agreement is barred by the statute of frauds as the agreement does not contain a termination provision. (See Reply at 3:18-19.)

The Court finds the GOC Agreement does not fall within the statute because performance of the contract was possible within one year, as the terms provided Defendant could sell, transfer, or hypothecate his shares at any time. (See FAC, ¶ 5.) Per these terms, Defendant could sell all shares and pay Plaintiff 18.7% of that transaction within one year, thus concluding the agreement. The Court further notes, as Plaintiff points out, the Notice of Errata corrected the typographical error at paragraph 12, to state "Defendant breached the partnership agreement…" (FAC, ¶ 12, Notice of Errata filed July 23, 2026.) Thus, Plaintiff also alleges Defendant breached the contract and Defendant's Demurrer on these grounds is unsuccessful.

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b. Void/Legal Impossibility

Defendant argues the GOC Agreement is void because the FAC alleges the parties entered into the agreement in 2003 before GOC existed. (See Dem. at 6:5-14.) Defendant also argues the GOC Agreement is void because its object is unlawful. See Dem. at 6:24-7:6.) Defendant argues the FAC alleges GOC is a subchapter S corporation and an oral agreement whose object is to vest beneficial ownership of S corporation shares in a partnership has an unlawful object. (See id., citing 26 U.S.C. § 1361(b)(1)(B) [a small business corporation eligible for S corporation status cannot have a person other than an individual, estate, certain permitted trusts, or specific tax-exempt organizations as a shareholder.].)

In opposition, Plaintiff argues though it is not clear what Defendant means by legal impossibility, in any event, the FAC alleges the GOC Agreement provided for "Farzad and Saeed agreed to collectively acquire 30% of the outstanding shares in [GOC] when those shares were issued...Legal title to the GOC shares would be held and at all times and remain in Saeed's name alone…" Plaintiff argues the FAC does not allege the partnership acquired the GOC shares, which is compliant with 28 U.S.C. 1361(b)(1)(B). (See Opp. at 4:21-5:6.) Finally, Plaintiff argues the FAC does not allege that GOC is an "S" corporation. (See id., at 5:8.)

In reply, Defendant argues Plaintiff does not dispute that GOC was created incorporated in 2004 and thus the GOC Agreement is inconsistent with this fact.

The Court cannot reach the issue of whether GOC Agreement complied with 28 U.S.C. 1361(b)(1)(B), because as Plaintiff points out, the FAC does not allege GOC is an S Corporation such that it could determine whether the FAC invokes 28 U.S.C. 1361(b)(1)(B).

The Court disagrees with Defendant the GOC Agreement is void because the FAC alleges the parties entered into the agreement in 2003, before GOC existed. (See RJN, Ex. F.) The FAC alleges the GOC Agreement was created in 2003 and the attached copies of checks sent to Plaintiff by Defendant allegedly in furtherance of their agreement and related schedule K-1s are all dated after 2003. (See FAC, ¶ 5, 7, Ex. A.) These documents are consistent with the year GOC incorporated. Additionally, the Court finds no defect in the alleged GOC Agreement merely because Plaintiff alleges the parties entered an agreement one year before GOC incorporated, as the parties could have entered into their alleged agreement with the understanding GOC would be created.

Thus, Defendant's argument on this ground fails.

c. Uncertainty

Defendant argues the alleged agreement is uncertain thus the first cause of action is uncertain. (See Dem. at 8:4; Reply at 5:9-14.)

In opposition, Plaintiff argues the pleaded agreement sufficiently provides a basis for determining the existence of a breach and for giving an appropriate remedy. (See Opp. at 7:6-15, citing Rest.2d Contracts, § 33(2).)

The Court OVERRULES Defendant' Demurrer for uncertainty pursuant to Code of Civil Procedure § 430.10(f) on the grounds that demurrers for uncertainty are disfavored and should only be sustained where the complaint is so uncertain that the demurring defendant cannot reasonably respond thereto. (See, e.g., Khoury, 14 Cal.App.4th at 616). Here, the FAC alleges the relevant material terms of the GOC Agreement—Plaintiff to purchase $100,000 worth of GOC shares, the shares' legal title to remain with Defendant, and for Plaintiff to receive 18.7% of all distributions Defendant received. (See FAC, ¶ 5.) The FAC is sufficiently detailed to apprise Defendant of the issues they are to meet regarding the agreement and not so uncertain that Defendant cannot reasonably respond thereto. ¿Moreover, even if the pleading is somewhat vague, "ambiguities can be clarified under modern discovery procedures."¿(Khoury, 14 Cal.App.4th at 616.)

The Court OVERRULES Defendant's Demurrer to the First Cause of Action for Breach of Oral Contract.

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3. Declaratory Relief

"To qualify for declaratory relief, a party would have to demonstrate its action presented two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations." (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909 [quotation marks and brackets omitted].)

A cause of action for declaratory relief should not be used as a second cause of action for the determination of identical issues raised in another cause of action. (General of Am. Ins. Co. v. Lilly (1968) 258 Cal.App.2d 465, 470.) "The availability of another form of relief that is adequate will usually justify refusal to grant declaratory relief" (California Ins. Guarantee Assn. v. Superior Court (1991) 231 Cal.App.3d 1617, 1624), and a duplicative cause of action is subject to demurrer. (See Palm

Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290).

Defendant argues the second cause of action is wholly duplicative of the first, because whether the agreement exists and what its terms are is what the breach claim adjudicates. Defendant also argues this claim seeks redress for alleged past wrongs and is wholly derivative of a contract claim that fails under the statute of frauds. (See Dem. at 8:16-27; Reply at 7:2-23.)

In opposition, Plaintiff argues this claim is not duplicative because it does not simply repeat the relief sought in the breach of contract or accounting causes of action. Plaintiff argues this claim alleges Defendant is denying the mere existence of the agreement and accordingly, this claim seeks an order confirming the terms of the agreement. (See Opp. at 7:25-8:4.)

The Court agrees this claim is duplicative and disagrees that it seeks to address past wrongs because the FAC seeks to establish Defendant's obligation to tender future payments to Plaintiff per the terms of the Agreement. (See FAC, ¶ 16.) And as discussed above, the contract claim is not barred by the statute such that this claim necessarily fails. However, adjudicating the breach of contract claim for Defendant's past failures to tender payment to Plaintiff per the Agreement will necessarily clarify the Agreement's validity and Defendant's future obligations to tender payments to Plaintiff per its terms.

Thus, the Court SUSTAINS Defendant's Demurrer to the Second Cause of Action for Declaratory Relief WITHOUT LEAVE TO AMEND.

4. Promissory Estoppel

"The elements of a promissory estoppel claim are (1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) the reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance." (Flintco Pacific, Inc. v. TEC Management Consultants, Inc. (2016) 1 Cal.App.5th 727, 734 [quotation marks and brackets omitted].)

Defendant argues this claim fails because the FAC alleges the reliance was bargained for. (See Dem. at 9:12-17, citing Douglas E. Barnhart, Inc. v. CMC Fabricators, Inc. (2012) 211 Cal.App.4th 230, 242–243, quoting Fontenot v. Wells Fargo Bank, N.A. (2011) 198 Cal.App.4th 256 disapproved of on other grounds by Yvanova v. New Century Mortgage Corp. (2016) 62 Cal.4th 919 [a plaintiff cannot state a claim for promissory estoppel when the promise was given in return for proper consideration. The claim instead must be pleaded as one for breach of the bargained-for contract."]; Reply at 8:7-18.) Defendant also argues alleging promissory estoppel cannot escape the statute of frauds. (See id., at 9:18.) Last, Defendant argues asserting estoppel against a statute of frauds defense requires unconscionable injury from a serious change of position or unjust enrichment of the party asserting the statute. (See Dem. at 9:19-21.) Defendant argues the FAC fails to show this because its judicially noticed Answer states he returned the entire $100,000, plus $13,100, in May 2025 and therefore Defendant has not been unjustly enriched. (See id., at 9:27-28; RJN, Ex. B)

In opposition, Plaintiff argues this claim is appropriately pled in the alternative and alleges all requisite elements. (See Opp. at 8:7-11, citing Lim v. The.TV Corp. Int'l (2002) 99 CA4th 684, 690.) Plaintiff argues Defendant cannot rely on Defendant's Answer as that matter is disputed and thus not subject to judicial notice. (See Opp. at 8:23-9:4.)

The Court finds the promissory estoppel claim is sufficiently alleged and pled in the alternative, "Plaintiff alternatively pleads a claim for promissory estoppel and will elect legal or equitable relief at the time of trial." (FAC, ¶ 18; Fleet v. Bank of America N.A. (2014) 229 Cal.App.4th 1403, 1413 [claim for promissory estoppel may be plead alternative to breach of contract claim].) As stated above, the Court does not judicially notice matters contained in the Answer which are not indisputably true.

Thus, the Court OVERRULES Defendant's Demurrer to the Third Cause of Action for Promissory Estoppel.

5. Accounting

“An accounting is an equitable proceeding which is proper where there is an unliquidated and unascertained amount owing that cannot be determined without an examination of the debits and credits on the books to determine what is due and owing… Thus, where the books and records are so complicated that an action demanding a fixed sum is impracticable, an accounting is appropriate. If an ascertainable sum is owed, an action for an accounting is not proper” (Prakashpalan v. Engstrom, Lipscomb & Lack (2014) 223 Cal.App.4th 1105, 1136-37 [citations omitted].)

“A cause of action for an accounting requires a showing that a relationship exists between the plaintiff and defendant that requires an accounting, and that some balance is due the plaintiff that can only be ascertained by an accounting. An action for accounting is not available where the plaintiff alleges the right to recover a sum certain or a sum that can be made certain by calculation.” (Teselle v. McLoughlin (2009) 173 Cal.App.4th 156, 179 [citations and paragraph break omitted].)

Defendant argues because each substantive claim in the FAC fails, the accounting claim also fails. (See Dem. at 10:9-11.) Defendant also argues because the FAC pleads Plaintiff was entitled to 18.7% of the distributions, the sum can be made certain by calculation. Defendant argues ordinary discovery, not an equitable accounting, is the vehicle for obtaining the remaining K-1s. (See id., at 10:19-25.; Reply at 9:1-5)

In opposition, Plaintiff argues the FAC pleads an accounting is proper because Defendant refuses to provide relevant documents that would establish how much Plaintiff is owed. (See Opp. at 9:17-21.) Plaintiff argues while the accounting claim seeks damages for past amounts owed, the breach of contract claim only seeks the amounts owed from 2025 through 2027. (See id., at 9:21-23.)

The Court finds the accounting claim is sufficiently alleged. Here, the FAC alleges Plaintiff does not know the actual sum of money he is owed because Defendant has refused to provide all K-1s and other documents that would confirm all distributions Defendant received from GOC. (See FAC, ¶¶ 22-24.) Thus, the FAC alleges an accounting claim is proper because Plaintiff cannot ascertain the amount owed to him, even with the alleged percentage, without examining the documents Defendant withholds.

Thus, the Court OVERRULES Defendant’s Demurrer to the Fourth Cause of Action for Accounting.

V. MOTION TO STRIKE

A. Legal Standard

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (See Code Civ. Proc. § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (See id. at § 436(b).) This provision is for “the striking of a pleading due to improprieties in its form¿or in the procedures¿pursuant to which it was filed.”¿ (Ferraro v. Camarlinghi¿(2008) 161 Cal.App.4th 509, 528 [emphasis in original].) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (See Code Civ. Proc. at § 437.)

B. Analysis

Defendant moves to strike the following portions:

1. Paragraphs 5 & 6

Defendant argues paragraph 5 exceeds the parties' stipulation to an amended complaint and is a sham rewrite. (See Mot. at 8:19-28.) Defendant argues the FAC deleted allegations the parties "would be partners with respect to their purchase of the GOC shares" and "with Farzad retaining an 18.7% equitable interest in those GOC shares" and now alleges legal title "was never required nor expected to be transferred to Farzad at any time" without explanation. (See id., at 8:25-9:1.)

Defendant argues paragraph 6 is a sham rewrite because it adds the allegations that the GOC Agreement is an "installment agreement" with obligations arising "on a continual and recurring basis." (See id., at 9:14-19.) Defendant argues this allegation serves no function except to manufacture fresh accrual dates. (See id.)

In opposition, Plaintiff argues the parties agreed the First Amended Cross-Cross Complaint ("FAXC") would be dismissed and a FAC would be filed, which incorporated the original and the amended cross-cross complaint's allegations. (See Opp. at 3:10-17.) Plaintiff contends paragraph 5 of the FAXC is verbatim identical to paragraph 5 in the FAC.

Plaintiff argues paragraph 6 was added to clarify that Defendant's obligation under the GOC Agreement could be classified as an "installment contract" because Defendant's obligations were based on his periodic receipt of funds from GOC on a continual and recurring basis. (See Opp. at 3:22-4:6.) Plaintiff argues inclusion of this allegation would preserve Plaintiff's right to sue for future breaches. (See id.)

The Court DENIES Defendant's Motion to Strike paragraphs 5 and 6. Paragraph 5 is not a sham allegation, as it is also included verbatim in the FAXC. Additionally, Paragraph 6 clarifies the nature of the alleged agreement and is not inconsistent with prior allegations.

2. Paragraph 23 (4th Cause of Action) and Paragraph 3 of the Prayer

Defendant argues the fourth cause of action, which alleges Plaintiff has "no idea when the under payments started and exactly how much money he may be owed" is inconsistent with the FAXC's allegation Plaintiff's damages are "believed to exceed $200,000.00[.]" (See Mot. at 10:12-16.)

Plaintiff explains breach of contract claim seeks the specific amounts owed from 2025 through anticipated 2027 – and those contract damages are estimated at $200,000.00. (See Opp. at 4:14-23.) Meanwhile, the accounting claim alleges Plaintiff cannot determine exactly how much he is owed since the beginning of the agreement because Defendant has refused to turn over relevant documents. (See id.)

The Court DENIES Defendant's Motion to Strike the Fourth Cause of Action as this claim is not inconsistent with the breach of contract claim. The breach of contract claim seeks known damages from 2025 to 2027, while the accounting claim alleges Plaintiff does not know the true amount he is actually entitled to because he has been unable to confirm the distributions Defendant received in past years.

3. Exhibit C and Paragraph 7, Exhibit D

Defendant asserts a tax privilege to Exhibit C and paragraph 7. (See Mot. at 10:23-28.) Defendant argues Exhibit D is irrelevant as it is an unsigned draft agreement. (See id., at 11:1-5.)

Plaintiff argues Exhibit C is redacted and Defendant waived the tax privilege by voluntarily providing the document. (See Opp. at 5:13-19.) Plaintiff argues Exhibit D is relevant to proving the existence of the parties' alleged oral agreement. (See id., at 6:23-28.)

The Court DENIES Defendant’s Motion to Strike Exhibits C-D and paragraph 7. The Court finds the tax privilege objection meritless. Exhibit C is one page and redacted; the only personally identifying information is the parties’ names, which are already publicly disclosed by the pleading. Further, Exhibit D is not irrelevant merely because it is unsigned by the parties.

4. Second Cause of Action

Defendant’s request to strike the second cause of action is moot as the Court sustained Defendant’s demurrer to this claim.

In sum, the Court DENIES Defendant’s Motion to Strike.

VI. CONCLUSION

Based on the foregoing, the Court OVERRULES Defendant’s Demurrer to the First Cause of Action for Breach of Oral Contract, Third Cause of Action for Promissory Estoppel, and Fourth Cause of Action for Accounting.

The Court SUSTAINS Defendant’s Demurrer to the Second Cause of Action for Declaratory Relief WITHOUT LEAVE TO AMEND

The Court DENIES Defendant’s Motion to Strike.

Defendant is ordered to file an Answer only on or before August 24, 2026.

IT IS SO ORDERED.

DATED: August 12, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.